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Case Number: 25STCP02449 Hearing Date: July 14, 2026 Dept: 836

Superior Court of California

County of Los Angeles

MICHAEL A. DAVIS, et al.,

Petitioners,

Case No.

25STCP02449

vs.

[TENTATIVE] RULING ON DEMURRER WITH MOTION TO
STRIKE TO FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE AND COMPLAINT

CITY OF PASADENA, et al.,

Respondents.

Dept. 836 (Hon. Curtis A. Kin)

THE WESTERN JUSTICE CENTER FOUNDATION,

Real Party in Interest.

Respondents City of Pasadena and City Council of

the City of Pasadena (collectively “City”) and real party in interest Western Justice Center Foundation (“Western Justice”) jointly demur to all three causes of action in petitioners Michael A. Davis and Mary M. West’s First Amended Petition and Complaint (“FAP”). They also seek to strike all CEQA-related allegations from the FAP as being irrelevant, improper, and failing as a matter of law.

I. BACKGROUND

A.

Allegations of the Petition

On or around September 17, 1989, City, through the Pasadena Surplus Property Authority (“Authority”), acquired title to property located at 55-85 South Grand Avenue Pasadena, California (“Property”), for the purpose of “provid[ing] an institutional center of national repute for study and research in the areas of law reform, improvements to judicial administration and lawyer competency, law-related education and service to the community with respect to improvement in legal processes and the use of alternative processes to litigation.” (FAP ¶¶ 30-34.) The Property consists of the Maxwell House and three other historic buildings. (FAP ¶¶ 41-42.) On April 4, 1989, the Authority leased the Property to Western Justice, and the lease strictly prohibited the use of for-profit activities at the Property. (FAP ¶¶ 35-37.) Notwithstanding this prohibition, “ancillary activities” such as “seminars, conferences, and conventions” in association with Western Justice could be held. (FAP ¶ 38.)

Presently,

Western Justice operates from the Maxwell House, uses the other buildings as administrative offices for its nonprofit work, and subleases office space to other nonprofit organizations. (FAP ¶ 45.) On April 7, 2023, Western Justice applied for a Conditional Use Permit (“CUP”) to permit the establishment of a Clubs, Lodges, Private Meeting Hall land use at the Maxwell House pursuant to the City’s Zoning Code. (FAP ¶ 48.) In its application, Western Justice proposed 132 special for-profit activities that would be ancillary to the primary use of the Property. (FAP ¶ 48.) On March 5, 2024, Western Justice supplemented its application. (FAP ¶ 49.) During the application process, the City issued two Temporary Use Permits, which allowed weddings and other events that had been previously scheduled to occur. (FAP ¶ 50.)

Neighbors

objected to the issuance of the CUP and argued that the application should be denied on the following grounds: (1) the lease prohibited for-profit activity at the Property; (2) it would cause increased noise, traffic, and greenhouse gas emissions; (3) it would cause adverse noise impacts on the community; (4) neighboring homeowners' outside enjoyment of their property would be affected; and (5) the Class 1 Categorical Exemption under CEQA did not apply. (FAP ¶ 52.) The City staff report, dated June 5, 2024, recommended the application's approval and determined that the CUP issuance was exempt from CEQA environmental review. (FAP ¶¶ 53-54.) On June 5, 2024, a hearing was held, and the hearing officer approved the application and determined that it was exempt from environmental review. (FAP ¶ 55.)

On

June 13, 2024, two appeals were submitted by petitioners to the Board of Zoning Appeals in response to the hearing officer's decision. (FAP ¶ 56.) On October 10, 2024, the Board upheld the hearing officer's decision. (FAP ¶¶ 64-65.)

Thereafter,

petitioners appealed the Board's decision to the City Council on October 21, 2024. (FAP ¶ 66.) By April 7, 2025, the City staff recommended that the City Council uphold the Board's decision with added conditions. (FAP ¶ 79.) On the same day, the City Council approved the CUP with certain revisions. (FAP ¶¶ 83-84.)

Repeatedly throughout these appeals, petitioners requested that the City provide them with notice of any hearings and decisions relating to the CUP application pursuant to CEQA. (FAP ¶¶ 89-94.) Petitioners allege that, despite these requests, they did not receive notice from City regarding the filing of the Notice of Exemption ("NOE"), which they claim was done intentionally. (FAP ¶¶ 95, 98-99.) Petitioners further allege that they reasonably relied on the City's statutory obligation to provide them with notice pursuant to CEQA. (FAP ¶ 100.) Based on information and belief, petitioners allege that the NOE was filed with the County of Los Angeles and the State of California, which stated that the CUP issuance was exempt under CEQA pursuant to the Class 1, Existing Facilities exemption. (FAP ¶ 97.)

B.

Procedural

History

On July 2, 2025, petitioners initiated this action. On December 22, 2025, City and Western Justice jointly demurred to the Petition. In lieu of an opposition, petitioners filed the operative Verified First Amended Petition and Complaint on March 10, 2026.

On April 13, 2026, City and Western Justice jointly filed a demurrer with a motion to strike. On June 30, 2026, petitioners filed oppositions to the demurrer and motion to strike. On July 7, 2026, City and Western Justice filed a joint reply.

II. DISCUSSION

A. Judicial Notice

The City and Western Justice request the Court to take judicial notice of the following documents: (1) the NOE filed by City on April 10, 20215 (Exhibit A); (2) a copy of the results of a records search from the Los Angeles County Registrar-Recorder/County Clerk California Environmental Quality Act Notice Search (Exhibit B); (3) a copy of the results of a records search from the California Governor's Office of Land Use & Climate Innovation State Clearinghouse "CEQAnet Web Portal" (Exhibit C); and (4) Assembly Bill 1860 (Exhibit D). The requests are GRANTED pursuant to Evidence Code § 452(c).

Petitioners' requests for judicial notice of Assembly Bill Nos. 314 and 1860 (Exhibits A and B, respectively) are GRANTED pursuant to Evidence Code § 452(c).

B. Demurrer

1. The Third Cause of Action for Violation of CEQA is Time-Barred

The City and Western Justice assert that the third cause of action for violation of CEQA is time-barred because it was not filed

within the applicable 35-day statute of limitations period as required by Public Resources Code § 21167(d). (Demurrer at 14-18.) The Court agrees.

When seeking to challenge a public agency's determination that a project is exempt from CEQA, the petitioner must bring the action within 35-days after a notice of exemption has been filed. (Pub. Res. Code § 21167(d).) If a written request to be provided with notice was made, the public agency must provide notice of such action within five days to the requestor, but the date of mailing of this notice expressly does not affect the time period specified in subdivision (d). (Pub. Res. Code § 21167(f).) "CEQA's statutory scheme evidences a clear legislative intent to 'ensure extremely prompt resolution' of lawsuits claiming violations of the statute." (*Organizacion Comunidad de Alviso v. City of San Jose* (2021) 60 Cal.App.5th 783, 791 [quoting *Stockton Citizens for Sensible Planning v. City of Stockton* (2010) 48 Cal.4th 481, 500].)

"A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]" [Citation.]" [Citation.]" (*Committee For Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.) "[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.] [Citations.]" (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.)

Here, the NOE was filed with the Los Angeles County Clerk and the Office of Planning and Research on April 10, 2025. (Resp. RJN Exs. A-C.) Thus, pursuant to Public Resources Code § 21167(d), the deadline to contest the NOE was May 15, 2025.[1]

However, petitioners did not file this action until July 2, 2025. While it is alleged that City failed to provide notice as required under Public Resources Code § 21167(f) (FAP ¶ 98), "CEQA contains no remedy for that violation." (*Organizacion Comunidad de Alviso*, 60 Cal.App.5th at 792.) As explained by the Court of Appeal in *Organizacion Comunidad de Alviso*, the filing of a legally proper notice as required under Public Resources Code § 21167 "provid[es] constructive notice to all potential litigants" and "triggers the [] statute of limitations to challenge the project." (*Id.* at 793 [emphasis in original].)

Petitioners attempt to distinguish the present case from Organizacion Comunidad de Alviso by arguing that it was the mailing of the defective Notice of Determination that provided constructive notice to the appellant in that case, whereas in this case no mailing of the NOE is alleged to have occurred at all. (Demurrer Opp. at 10:5-23.) The Court finds that this is a distinction without a difference, as petitioners cannot escape the actual words used by the Court, which stated: "As we have discussed, the statute of limitations to challenge the adequacy of an EIR begins to run when a valid NOD is filed." (Organizacion Comunidad de Alviso, 60 Cal.App.5th at 794.)

Petitioners

also attempt to rely on legislative history to argue that the mailing of the notice is a critical distinction and that the agency's failure to mail the notice warrants a different outcome. (Demurrer Opp. at 8:4-17, 11-12.) But no remedy for such a violation is prescribed by statute, and "[i]t is not for [the Court] to legislate a remedy for the city's violation of section 21167, subdivision (f), particularly where the remedy plaintiff seeks would conflict with express provisions of that very statute." (Organizacion Comunidad de Alviso, 60 Cal.App.5th at 793.)

Moreover, "the Legislature has identified the [filing of the notice] as the trigger for the statute of limitations, and the Supreme Court has emphasized that potential litigants must pay close attention to those filings before initiating litigation." (Id. at 794.)

To avoid the time bar of Public Resources Code § 21167(d), the FAP alleges that City is estopped from asserting a statute of limitations defense, because City "intentionally never mailed the NOE" and petitioners "reasonably relied on the City's statutory obligation to mail notices relating to the Project pursuant to CEQA." [2] (FAP ¶¶ 100-104.) However, even if the failure to mail the NOE to petitioners was intentional, petitioners' "reliance on that failure would be unreasonable as a matter of law" because City's proper filing of the NOE gave constructive notice to all potential litigants and City's conduct "did not affect the fundamental process followed nor the filing of public notice of that process." (Organizacion Comunidad de Alviso, 60 Cal.App.5th at 796.) Further undermining petitioners' estoppel claim, at no point during the appeals process did City ever communicate that it would circulate an environmental impact report, and, indeed, the allegations of the FAP imply that the City always intended to issue a NOE. (FAP ¶¶ 52-84; cf. Citizens for a Responsible Caltrans Decision v. Department of Transportation (2020) 46

Cal.App.5th 1103, 1133 [finding that CalTrans was estopped from evoking the statute of limitations as a defense because it had made misrepresentations to the appellant and the public.)

Consequently, because petitioners did not timely file this action in accordance with Public Resources Code § 21167(d), the third cause of action is time-barred and the Demurrer is SUSTAINED as to this cause of action.

2.

The Second Cause of Action for Writ of Mandate per CCP § 1094.5 Alleges Sufficient Facts to Support a Cause of Action

The City and Western Justice demurred to the second cause of action for writ of mandate per CCP § 1094.5 on the ground that it is also time-barred because that cause of action, in their view, amounts to a CEQA claim. (Demurrer at 9-10.) The Court disagrees.

Here, the FAP alleges that the City abused its discretion in determining that the project was exempt from CEQA, but the FAP also alleges in the second cause of action that City's findings "that the proposed use is allowed under the City's Zoning Code as an accessory facility of a principal use, that WJC's for-profit activities of generating revenue through the proposed events are permitted, that the proposed use would not be detrimental to the health, safety, or general welfare of persons residing in the neighborhood, and that the proposed use would not be detrimental or injurious to property in the neighborhood are contrary to the provisions of the Zoning Code and the Noise Restrictions Ordinance." (FAP ¶ 114.)

While the demurring parties emphasize that the second cause of action seeks to challenge the NOE determination (FAP ¶ 115), they fail to cite any authority for the proposition that non-CEQA claims cannot be brought when a CEQA challenge is untimely. Demurrers do not lie as to only parts of causes of action where some valid claim is alleged, because a demurrer "must dispose of an entire cause of action to be sustained." (Poizner v. Fremont General Corp., 2007) 148 Cal.App.4th 97, 119.) Because the demurrer only challenges the CEQA allegations of the second cause of action, the Court finds that the demurrer to that cause of action lacks merit.

In

reply, City and Western Justice also claim that the allegations in support of their claims under the Zoning Code and Noise Restrictions Ordinance are conclusory. (Reply at 8.) However, the FAP includes allegations in support of petitioners' other contentions as to how the City abused its discretion in approving the CUP beyond purportedly violating CEQA. (FAP ¶¶ 47-48, 52, 57, 66-68, 74 114.)

Therefore,

the second cause of action is sufficiently alleged, and, accordingly, the demurrer to the second cause of action is OVERRULED.

3.

The First Cause of Action for Writ of Mandate per
CCP § 1085 Fails to Allege Sufficient Facts to Support a Cause of Action

City and Western Justice demur to the first cause
of action on the ground that it fails to allege any ministerial duty. (Demurrer
at 20-21.) The Court agrees.

"There are two essential requirements to the
issuance of a traditional writ of mandate: (1) a clear, present and usually
ministerial duty on the part of the respondent, and (2) a clear, present and
beneficial right on the part of the petitioner to the performance of that
duty." (California Assn. for Health Services at Home v. State Dept. of
Health Services (2007) 148 Cal.App.4th 696, 704.) It
must also be shown that the petitioner lacks a plain, speedy, and adequate
alternative remedy. (CCP § 1086.)

Here, the FAP alleges that "[t]he City has abused
its discretion because it did not proceed in the manner required by law and
made findings not supported by the evidence when it approved the CUP for the
Project" and "failed to act as required by law when it employed practices and
policies in the processing of WJC's CUP application." (FAP ¶ 108.) Given that petitioners
are expressly challenging the results of an administrative hearing (FAP ¶ 112),
they have available to them an adequate remedy through administrative mandate
pursuant to CCP § 1094.5, as alleged in the second cause of action. (See
Conlan v. Bonta (2002) 102 Cal.App.4th 745, 752 ["Where a petition
challenges an agency's failure to perform an act required by law rather than
the conduct or result of an administrative hearing, the remedy is by ordinary

mandate pursuant to Code of Civil Procedure section 1085, not by administrative mandate pursuant to section 1094.5”].) Therefore, the Court finds that the first cause of action does not sufficiently make out a claim for traditional mandate.

Petitioners unconvincingly argue that the first cause of action alleges a ministerial duty because City failed to provide notice of the NOE as required under CEQA. (Demurrer Opp. at 14:5-6.) According to its own allegations (FAP ¶¶ 107-112), however, the first cause of action does not concern CEQA or any violation thereof. Regardless, as discussed above, there is no remedy for such a violation of CEQA even if alleged, and the Court thus would not be able to provide any effectual relief for such violation, thereby rendering the claim moot. (See *Wilson & Wilson v. City Counsel of Redwood City* (2011) 191 Cal.App.4th 1559, 1574.)

Accordingly, because the first cause of action fails to allege a ministerial duty and an alternative remedy exists through CCP § 1094.5, the Demurrer to the first cause of action is SUSTAINED.

C.

Motion to Strike

The

City and Western Justice seek to strike all references to CEQA in the FAP. (See Notice of Motion at 2-13; FAP ¶¶ 2, 5, 7, 12, 14, 23-29, 66, 69, 79, 83, 85-105, 114-117, 120-126, 128, 129, 134, 135; Prayer for Relief, ¶¶ 2, 4, 6.)

The

Court may, upon a motion, or at any time in its discretion, strike “any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc. § 436(a).) The court may also strike “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436(b).)

Because

petitioners’ third cause of action for violation of CEQA is time-barred and subject to demurrer, any allegations that reference CEQA are no longer essential to petitioners’ pleading. Therefore, it is appropriate to strike them. (See *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage;

probative facts are surplusage and may be stricken out or disregarded”].)

Accordingly,
the motion to strike is GRANTED.

III. CONCLUSION

The
demurrer is SUSTAINED as to the first and third causes of action without leave
to amend and OVERRULED as to the second cause of action. The motion to strike
is GRANTED in its entirety.

Date: July
14, 2026

HON.
CURTIS A. KIN

[1] The exact
date of the filing is not alleged in the FAP, but petitioners concede that the
NOE was filed, and the allegations imply that the 35-day deadline had elapsed
before petitioners brought this action. (FAP ¶¶ 95-104.) Notably, petitioners neither
deny that the NOE was filed on April 10, 2025 nor contest the Court taking
judicial notice of the documents revealing the actual filing date for purposes
of this demurrer.

[2] “Generally speaking, four elements
must be present in order to apply the doctrine of equitable estoppel: (1) the
party to be estopped must be apprised of the facts; (2) he must intend that his
conduct shall be [sic] acted upon, or must so act that the party
asserting the estoppel had a right to believe it was so intended; (3) the other
party must be ignorant of the true state of facts; and (4) he must rely upon
the conduct to his injury.” (Driscoll v. City of Los Angeles (1967) 67
Cal.2d 297, 305.)